

26STCV06684 26STCV06684

County: los-angeles

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Case Number: 26STCV06684 Hearing Date: September 23, 2026 Dept: 406

TERESA QUINTANILLA

SANCHEZ,

Plaintiff,

v.

ALDEN ENTERPRISES LLC,

et al.,

Defendants.

Case No.: 26STCV06684

Hearing Date: September 23, 2026

[TENTATIVE]

order RE:

defendants alden enterprises, llc's and

longwood management, llc's motion to compel arbitration

BACKGROUND

On March 2, 2026, Plaintiff Teresa

Quintanilla Sanchez filed this employment discrimination action against

Defendants Alden Enterprises, LLC; Longwood Management, LLC; Steven P. Haas;

and Marvin Doe.

On June 10, 2026, Defendants Alden Enterprises and Longwood Management filed the instant motion to compel arbitration. Plaintiff filed an opposition on August 6, 2026. Defendants filed a reply on August 12, 2026. Plaintiff filed a sur-reply on September 2, 2026. Defendants filed a reply to Plaintiff's sur-reply September 14, 2026.

LEGAL STANDARD

"On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists...." (Code Civ. Proc, § 1281.2.) "The party seeking arbitration bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability." (Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC (2012) 55 Cal.4th 223, 236.)

DISCUSSION

A. PLAINTIFF'S

ACTION IS EXEMPT FROM ARBITRATION UNDER THE "ENDING FORCED ARBITRATION OF SEXUAL ASSAULT AND SEXUAL HARASSMENT ACT" (EFAA).

The EFAA, provides that, notwithstanding any other provision of the FAA, at the election of the person alleging conduct constituting a sexual harassment dispute, no pre-dispute arbitration agreement shall be valid or enforceable with respect to a case filed under federal, tribal, or state law that relates to the sexual harassment dispute. (See, 9 U.S.C.A., Section 402.) The EFAA defines a "sexual harassment dispute" as a dispute relating to conduct that is alleged to constitute sexual harassment under applicable federal, tribal, or state law. (See, 9 U.S.C.A., Section 401.)

FEHA expressly defines the scope of prohibited harassment in California Government Code, Section 12940(j)(4)(C), which states: "'harassment' because of sex includes sexual harassment,

gender harassment, and harassment based on pregnancy, childbirth, or related medical conditions." (emphasis added.) This provision makes clear that pregnancy-based harassment is not a separate or lesser category of harassment and that it is a form of harassment because of sex, which is the same category that encompasses sexual harassment. Also, California Government Code, Section 12926(r)(1) defines "sex" to include pregnancy and medical conditions related to pregnancy.

In the present case, Plaintiff has alleged harassment based upon pregnancy, which, as set forth above, constitutes sexual harassment. As such, Plaintiff's action is exempt from arbitration under EFAA.

CONCLUSION

Defendants Alden Enterprises, LLC's and Longwood Management, LLC's motion to compel arbitration is DENIED.